

23STCV15544 23STCV15544

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-08-06

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Case Number: 23STCV15544 Hearing Date: August 6, 2026 Dept: 510

No.

11 - Ayoka Chapple v. Dana D Fikes

Plaintiff

Ayoka Chapple's Motion for Appointment of Partition Referee

Plaintiff Ayoka Chapple moves to appoint

a referee to sell real property at 4824 Brayton Place, Los Angeles, California

90041. Code of Civil Procedure section 873.010(a) provides that in a partition

action, "[t]he court shall appoint a referee to divide or sell the property as

ordered by the court." For partition by sale, the referee "shall sell the

property in the manner and following the procedures provided in this chapter."

(CCP § 873.510.)

Here, the parties have agreed to

partition by sale. Therefore, no order or interlocutory judgment formalizing

this mutual agreement is necessary. The Court finds it appropriate to appoint a

referee to sell the property.

Defendant does not oppose the

appointment of a referee; rather, she wants the Court to include certain terms

in the order, such as provisions fixing the referee's bond, the referee's

reasonable compensation, how the property should be sold, etc. Most of Defendant's proposed terms are reasonable.

In

reply, Plaintiff largely takes issue with including a briefing schedule that

would take place concurrently with the referee's marketing of the property. The

Court agrees that it is unnecessary to include a briefing schedule in the order.

Disposition

By mutual agreement of the parties
Plaintiff Ayoka Chapple's motion for
appointment of referee is granted.

Within 15 days, Plaintiff shall file and serve a
written proposal of three candidates to serve as referee. For each candidate,
the proposal shall state (1) the name, address, telephone number, and email
address of the candidate; (2) the candidate's hourly rates and budget for services to be rendered
in this case, and (3) a brief description of the candidate's credentials.

Within seven days of service and filing of Plaintiff's proposal, Defendant
shall notify the Court and Plaintiff in writing of her selection of one of the
three candidates.

The Court hereby sets an order to show cause re:

appointment of referee for Monday, September 14, 2026, at 8:30 a.m. The parties
are ordered to submit a JOINT proposed order appointing the referee for the

Court to sign once the referee is selected. Defendant's proposed order submitted on July 24, 2026 can serve as the starting
point, but without paragraphs 1 and 10.